

ACCESS TO HERITAGE: A COMPARATIVE STUDY OF ITALY AND THE UK FROM A FUNDAMENTAL RIGHTS PERSPECTIVE

OUTSTANDING
LLM DISSERTATIONS

CREATe Working Paper 2024/11

LUCY CUNNINGHAM



CREATe

Editorial note

2024 marks the fourth edition of the Outstanding LLM dissertations. Like in the years before, the CREATE teaching team came together to select a small number of the excellent master dissertations of the University of Glasgow IP students to offer its authors an opportunity to showcase their work in the CREATE Working Papers series.

CREATE leads the LLM in Intellectual Property & Digital Economy offered by the Law School at the University of Glasgow.* The programme provides students with a unique opportunity to explore the rapidly developing digital environment through the lens of intellectual property, and to engage with the current policy discussions in which CREATE remains an active participant. All IP LLM students are required to submit a master dissertation on the topic of their choosing. They work on their dissertations independently, under the limited guidance of a supervisor.

This paper is one of the 2024 outstanding dissertations. We hope you enjoy the read and take a moment to appreciate the work and curiosity of our students.

Ula Furgat

Managing editor, CREATE Working Papers

* More information on the programme available at: <https://www.gla.ac.uk/postgraduate/taught/intellectualproperty/>

Access to heritage: A comparative study of Italy and the UK from a fundamental rights perspective

Lucy Cunningham*

Outstanding LLM Dissertations 2024**

Abstract

The objective of this work is to analyse the problem of restricted access to cultural heritage by current legislation, and to propose recommendations for reform to mediate the problem. The issues surrounding access to cultural heritage will be investigated from a fundamental rights perspective, with a comparative analysis between the UK, and Italy (which lends itself to discussion of the European Union). To exemplify the challenges to access to cultural heritage, this research focuses on the case of digital reproductions of public domain cultural heritage. This research is motivated by the evolving landscape of the cultural heritage sector, and the legal frameworks governing access to and dissemination of cultural heritage in the digital age.

A fundamental rights approach has been taken to highlight how important it is to ensure access to cultural heritage. There has been a steady flow of research looking at copyright law from a fundamental rights perspective, but much of this has focused on the relationship between copyright law and freedom of expression. This study instead focuses on the fundamental right to cultural participation,*** rephrased as the 'right to access to cultural heritage' in this research to encompass any related cultural rights. This aims to form a new perspective on copyright law and its relationship with fundamental rights. Through this lens copyright law is largely satisfactory – Article 14 of the Copyright in the Digital Single Market Directive is a great example of a legal provision that champions access to cultural heritage. The issue instead lies with other laws which can be used by Galleries, Libraries, Archives, Museums and other cultural heritage institutions to restrict access to cultural heritage for, for example, their own economic gain. This is particularly a problem when access to cultural heritage is restricted by laws or other legal

* Lucy Cunningham is a graduate of LLM in Intellectual Property and the Digital Economy programme at the University of Glasgow. I would like to extend a special thank you to Mr Bartolomeo Meletti (CREATe) and Ms Brigitte Vézina (Creative Commons) for their expert guidance, advice and support throughout.

** This is a collaborative LLM Dissertation, a dissertation prepared in collaboration with an external partner, here Creative Commons represented by Ms Brigitte Vézina.

*** Stemming from Article 27 of the Universal Declaration on Human Rights.

measures when copyright law would otherwise allow access, use, and enjoyment of them, such as those that are in the public domain.

As a consequence, certain copyright provisions in the UK and EU should be reformed. Copyright non-overrideability provisions for both the UK and EU legislators are proposed to be implemented into the Copyright, Designs, and Patents Act 1988, and the Copyright in the Digital Single Market Directive, respectively. Given that legislative reform is highly challenging to accomplish, other ways in which access to cultural heritage can be aided, such as guidance to the judiciary and increased funding for GLAMs, will be mentioned. Ultimately, however, it is argued that legislative reform is essential for championing access to cultural heritage and upholding fundamental rights within the copyright system in the digital age.

Table of Contents

Introduction.....	4
Chapter 1: A Discussion of Fundamental Cultural Rights.....	6
1.1. Fundamental Cultural Rights at International Level	6
1.2. Fundamental Cultural Rights in the United Kingdom	8
1.3. Fundamental Cultural Rights at European Union Level	9
1.3.1. <i>The Public Domain</i>	9
Chapter 2: The case of digital reproductions of public domain cultural heritage: A comparative analysis between the UK, EU, and Italy	10
2.1. United Kingdom.....	10
2.2. EU: Article 14 of the CDSM Directive	12
2.2.1. <i>Italy</i>	13
2.3. Concluding Remarks	14
Chapter 3: The overridability of copyright law analysed from a fundamental rights perspective.....	14
3.1. The overridability of copyright law: A fundamental rights analysis.....	15
3.1.1. <i>The UK: Contractual Measures and Technological Protection Measures</i>	16
3.1.2. <i>Italy: Cultural Heritage Laws</i>	18
3.2. Concluding remarks	19
Chapter 4: Proposals for Reform: Implementing change in the UK and EU	19
4.1. Introductory remarks.....	19
4.2. Legislative Reform Proposals: Non-Overridability Provisions	20
4.2.1. <i>The UK: The proposed new section to the CDPA 1988</i>	20
4.2.2. <i>The EU: The proposed new provision to the CDSM Directive</i>	23
4.3. Additional Recommendations: Other ways to ensure access to heritage.....	24
4.4. Concluding remarks	25
Conclusion	26
Bibliography.....	28

Introduction

In our burgeoning digital world, maintaining access to cultural heritage is becoming increasingly critical. As cultural heritage institutions digitise their collections, the public's right to access, use, and enjoy these works has become a primary issue. However, varying national laws and the imposition of restrictive measures have created significant barriers. This research critically analyses how these practices undermine fundamental rights.

The primary objective of this research is to examine access to cultural heritage given the overridability of copyright law from a fundamental rights perspective, particularly in the UK and Italy. It focuses on the impact on access for users, which encompasses members of the public, as well as individuals such as researchers and educators. Methodologically, this research employs a comparative legal analysis of the laws and practices that cause problems in the UK and Italian approaches to copyright law and cultural heritage. In Italy, cultural heritage laws hinder access, and in the UK contractual measures and technological protection measures (TPMs) play a restrictive role. This study draws on International, EU, Italian and UK legislation, standards, and case law, which were selected based on their relevance to the topic. The study also incorporates a review of contemporary legal debates and the implications of responses by Italy and the UK to technological advancements on copyright and fundamental rights.

The public domain is made up of works that are not subject to copyright. The public domain is so important to the copyright system because it preserves cultural heritage, inspires new generations of creators, and increases human knowledge.¹ The case of digital reproductions of public domain cultural heritage is focused on in this research to exemplify the current status of access to cultural heritage in the UK and EU, particularly Italy. The cultural heritage sector, particularly Galleries, Libraries, Archives, and Museums (hereinafter GLAMs),² have a civic duty to ensure unrestricted access to digital reproductions of public domain works. As Andrea Wallace states, "the public domain is a central part of the copyright bargain and its availability produces a wider benefit to society."³ This has been recognised recently in the UK's political

¹ Creative Commons, Creative Commons Certificate for Educators, Academic Librarians, and Open Culture, see Unit 2.3: The Public Domain <<https://certificates.creativecommons.org/cccertedu/chapter/2-3-the-public-domain/>> accessed 1 August 2024.

² 'GLAM' is an acronym commonly used in cultural heritage research to describe the main types of Cultural Heritage Institution that engage in open culture. See Creative Commons Certificate for Educators, Academic Librarians, and Open Culture, see Unit 5: CC for Open Culture <<https://certificates.creativecommons.org/cccertedu/chapter/5-1-open-glam-open-access-to-cultural-heritage/>> accessed 1 August 2024.

³ Andrea Wallace, 'A Culture of Copyright: A scoping study on open access to digital cultural heritage collections in the UK' (Towards A National Collection, 2022), p.2.

landscape with the Labour Party Manifesto for the 2024 General Election in July, stating that “Labour will support the sector to develop an open data policy to ensure that national museums and galleries allow everyone to download high-resolution images of works of art that are in the public domain...”⁴ Highlighting that politically, access to the arts and cultural heritage should be delivered for all to access, use and enjoy.

The United Nations Human Rights Commission described ‘cultural heritage’ as something that is ‘interpreted and re-interpreted in history’ and as something that is ‘transmitted from generation to generation’.⁵ Digitising cultural heritage is the way in which this generation interprets cultural heritage. It is also a way of ensuring that it can be transmitted to the next. Digital reproductions refer to digital versions of physical cultural heritage items, such as paintings, manuscripts, and other artefacts. These reproductions are created using various technologies, including high-resolution photography,⁶ and 2D and 3D scanning.⁷ Digital reproductions of cultural heritage have many social benefits, such as the possibility of being able to be easily shared, accessed, and viewed online, and have been recognised as promoting “education and research, creativity, entrepreneurship, and tourism.”⁸ Thus, making cultural heritage accessible to global audiences regardless of geographic location, in theory. However, these possibilities are theoretical, and in reality, the legal scenario is much different, as will become evident later in the research.

The dissertation is structured into four chapters and a conclusion. Chapter 1 outlines the International, European and UK frameworks governing the fundamental rights relating to cultural heritage and copyright. Specifically, discussion focuses on Article 27 of the Universal Declaration on Human Rights, and Article 15 of the International Covenant on Economic, Social and Cultural Rights. It also provides a comparative analysis of how the UK and Italy implement these standards. Chapter 2 examines the current legal scenarios in the EU, Italy and the UK which involves discussion of copyright, cultural heritage laws, contractual measures, technological protections measures, and fundamental rights.

⁴ Labour, ‘Creating Growth: Labour’s Plan for the Arts, Culture and Creative Industries’ (2024), p.33 <<https://labour.org.uk/wp-content/uploads/2024/03/Labours-Arts-Culture-Creative-Industries-Sector-Plan.pdf>> accessed 1 August 2024.

⁵ Human Rights Council (UN), ‘Report of the independent expert in the field of cultural rights, Faria Shaheed’ (A/HRC/17/38)(2011), p.4.

⁶ Andrea Wallace (2022), n3, p.72; Kristin Housler, Camila Adach, and Anna Khalfaoui, ‘The Human Right to Access and Enjoy Cultural Heritage in the United Kingdom’ British Institute of International and Comparative Law (2018), p.26-27.

⁷ Andrea Wallace (2022), n3, p.22 and p.92.

⁸ Giulia Dore and Giulia Priora, ‘The EU imperative to a free public domain: The case of Italian cultural heritage’ (COMMUNIA 2024), p.8.

Chapter 3 begins the substantive critical analysis by examining how the existing laws and/or legal practices outlined in Chapter 2 in Italy and the UK inhibit fundamental rights. The current overridability of copyright law by other laws is the focus of this chapter. It therefore explores the need for stronger measures to protect copyright law and its principles. Chapter 4 is focused on proposals for reform. This chapter presents legislative recommendations for both the UK and the EU. It proposes specific legal provisions to ensure the non-overridability of copyright law involving direct protection of the public domain. In the concluding chapter, the findings are summarised, reiterating the importance of safeguarding fundamental rights within copyright law systems, and calls for legislative reforms to promote access to cultural heritage, and unrestricted access to public domain works and reproductions thereof.

Ensuring access to cultural heritage is not only a matter of acknowledgment and enjoyment of history but also of upholding fundamental rights. The challenges posed by restrictive national laws and restrictive measures require clear legal reforms. This research aims to contribute to this discourse by providing a detailed analysis of the current legal landscape and proposing actionable solutions, that are future-proof, and enhance public access to cultural heritage in the digital age.

Chapter 1: A Discussion of Fundamental Cultural Rights

In the past, it was long criticised that cultural rights were “underdeveloped” on an International, EU, and national level.⁹ It has been expressed that obligations to ‘respect, protect and fulfil’ cultural rights have been somewhat ignored on an international level, with the legislators’ and courts’ lack of awareness and understanding of these rights playing a significant part in this problem.¹⁰ Despite this, cultural rights have been formally recognised in conventions, directives, and national law. The traditional foundations of cultural rights protection within fundamental rights instruments will be discussed in this chapter.

1.1. Fundamental Cultural Rights at International Level

Christophe Geiger highlights that international treaties have ‘modern and balanced provisions on copyright protection.’¹¹ Within the international context, the right to take part in cultural life was officially introduced in 1948 under Article 27 of the Universal Declaration of Human Rights

⁹ Caterina Sganga, ‘Right to Culture and Copyright’ in C. Geiger (ed.), “Research Handbook on Human Rights and Intellectual Property” (Edward Elgar 2015), p.3.

¹⁰ Caterina Sganga, (2015), p.3.

¹¹ Christophe Geiger, ‘Copyright’s Fundamental Rights Dimension at EU Level’ (2009) Research Handbook on the Future of EU Copyright, 27-48, 31.

(UDHR).¹² Article 27 UDHR states that: “(1) Everyone has the right freely to participate in the cultural life of the community, to enjoy the arts and to share in scientific advancement and its benefits;” and “(2) Everyone has the right to the protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.”¹³

Following Article 27 UDHR, it is clear that human rights protection and safeguarding culture are not only closely interrelated, but their connection is “inextricable” and should be “unbreakable.”¹⁴ Article 27(1) of the UDHR emphasises the universal right to access and participate in cultural heritage as a fundamental human right. This principle underscores the significance of cultural participation and enjoyment as essential to individual and community development, fostering a shared cultural identity and allowing enjoyment of cultural heritage worldwide.

The language of the UDHR – initially a non-binding document that later became recognised as part of customary international law – was further expressed in Article 15 of the International Covenant on Economic, Social and Cultural Rights.¹⁵ This binding text highlights, in accordance with Article 27 UDHR, the multifaceted nature of the right by dividing it into three distinct yet interconnected components: “to take part in cultural life;”¹⁶ “to enjoy the benefits of scientific progress and its applications;”¹⁷ and “to benefit from the protection of the moral and material interests resulting from any scientific, literary or artistic production of which he is the author.”¹⁸

The Committee on Economic, Social and Cultural Rights (CESCR) provided two General Comments on Article 15 ICESCR. Within the second of the two General Comments, the CESCR identified three main elements of the right to take part in cultural life: participation in, access to and contribution to cultural life.¹⁹ In General Comment No.21 these components are explained in greater detail.²⁰ *Participation* can be understood as the right of everyone to ‘freedom of choice, expression, opinion, creation, and cooperative endeavours.’²¹ *Contribution* involves the right to

¹² UN General Assembly, *Universal Declaration of Human Rights* (UDHR), 10 December 1948, 217 A (III), Article 27.

¹³ *ibid.*

¹⁴ Laura Pineschi, ‘Cultural Heritage, Sustainable Development and Human Rights: The Need for an Integrated Approach’ in Laura Pineschi (Ed.) *Cultural Heritage, Sustainable Development and Human Rights: Towards an Integrated Approach* (Routledge, 2023), p.10.

¹⁵ UN General Assembly, *International Covenant on Economic, Social, and Cultural Rights* (“ICESCR”), *United Nations*, Treaty Series, vol. 993, 1996, Article 15.

¹⁶ ICESCR, Article 15(1)(a).

¹⁷ ICESCR, Article 15(1)(b).

¹⁸ ICESCR, Article 15(1)(c).

¹⁹ ECOSOC, Committee on Economic, Social and Cultural Rights, General Comment 21, Right to Everyone to Take Part in Cultural Life (Article 15, paragraph 1(a), of the International Covenant on Economic, Social and Cultural Rights)(General Comment no.21), UN Doc. E/C.12/GC/21, 20 November 2009, para 15.

²⁰ Casandra Sgange (2015), n9, p.15.

²¹ General Comment no.21, n19, para.15(a); Casandra Sgange (2015), n9, p.15.

be involved in 'creating the spiritual, material and intellectual and emotional expressions of the community', and in the related decision-making processes.²² *Access* incorporates the right of everyone 'to receive quality education and training with due regard for cultural identity', 'to learn about forms of expression and dissemination through any technical medium of information or communication', and 'to know and understand his or her own culture and that of others through education and information.'²³

In light of the discussion of the elements of the right to take part in cultural life in General Comment no.21 (see above), the two international rights themselves - the right to cultural participation (Article 27 UDHR), and its counterpart found under Article 15 of the ICESCR - will be referred to generally as the 'right to access cultural heritage' for the purposes of this research. The implementation of this general right to access cultural heritage encompasses the elements of use and enjoyment of heritage, and participation in cultural life and heritage, as well as of course access. The national implementation of cultural rights is looked at below.

1.2. Fundamental Cultural Rights in the United Kingdom

Commentators focusing on the UK fundamental rights scenario have noted historical scarcity of discourse on the relationship between copyright and fundamental rights.²⁴ The enactment and implementation of the Human Rights Act 1998,²⁵ which incorporates the provisions of the European Convention on Human Rights into UK law,²⁶ has been pivotal. The Human Rights Act granted the courts new powers to interpret legislation, invalidate administrative actions or secondary legislation, and highlight incompatibilities.²⁷ This legislative shift in the UK is credited with catalysing greater judicial and academic engagement with the intersection of copyright and fundamental rights.²⁸

However, given this limited discussion in the UK, it is evident that there has been even less, if any, examination of the relationship between copyright and the right to cultural participation (as well as the right to artistic freedom). Analysing copyright issues, such as those relating to the public domain, from the perspective of the right to access cultural heritage, will reinforce the argument that fundamental rights are intrinsic to the effective functioning of the copyright

²² n19, para. 15(c).

²³ n19, para 15(b).

²⁴ Yin Harn Lee, 'Copyright and Freedom of Expression: A Literature Review' (CREATE Working Paper 2015/04 (May 2015)), p.8-9.

²⁵ The Human Rights Act 1998

²⁶ Council of Europe, European Convention for the Protection of Human Rights and Fundamental Freedoms, as amended by Protocols Nos. 11 and 14, ETS 5, 4 November 1950, ("ECHR").

²⁷ Yin Harn Lee, 'Copyright and Freedom of Expression...' (2015), n24, p.34.

²⁸ *ibid.*

system. To respect cultural rights, countries should not adopt laws and policies that may interfere with one's enjoyment and guarantee of access to cultural heritage, and therefore the right to take part in cultural life.²⁹

Later in this research, relevant laws of the EU, Italy and the UK will be critically analysed from this perspective. First, however, a brief overview of fundamental cultural rights – the right to access culture heritage – at EU level will be discussed.

1.3. Fundamental Cultural Rights at European Union Level

The framework for protecting fundamental rights within the European Union comprises the provisions of the European Convention for the Protection of Human Rights and Fundamental Freedoms (hereinafter ECHR),³⁰ the Charter of Fundamental Rights of the European Union (hereinafter CFREU),³¹ and the subsequent national constitutions implementing the fundamental rights.

As explored in the initial part of this chapter, the UDHR and the ICESCR strongly impose the need for national efforts towards access, use and enjoyment of cultural heritage worldwide. The Charter of Fundamental Rights of the EU and the evolving EU secondary legislation underscores the commitment to safeguard culture, cultural diversity, and cultural inclusivity in society (Articles 22, 25, 26 CFREU), as well as other related cultural rights such as freedom of the arts and sciences and freedom of expression and information (Articles 11 and 13 CFREU).³² The Court of Justice of the European Union is entrusted with the task of ensuring respect for the ECHR's provisions by the European institutions.³³ Although the ECHR contains several provisions that have a cultural dimension, it does not explicitly address a fundamental right to cultural participation.

1.3.1. *The Public Domain*

At this stage in the preamble, it is important to re-introduce the fundamental component of any copyright system – the public domain – back into the discussion.

Protecting the Public Domain is intrinsic to the values of the European Union. As Dr Evangelia Psychogiopoulou highlights, "The EU is not solely required to abstain from compromising cultural plurality when developing activities in the various areas of competences that it enjoys,

²⁹ General Comment no.21, n19, para. 66.

³⁰ ECHR, n26.

³¹ European Union, Charter of Fundamental Rights of the European Union, 2012/C 326/02, 26 October 2012.

³² Dore and Priora (2024), n9, p.44.

³³ Evangelia Psychogiopoulou, 'The European Union and Cultural Rights', in Ana Vrdoljak (ed.), *The Cultural Dimension of Human Rights*, Collected Courses of the Academy of European Law (Oxford, 2013), p.162.

it is also under a duty to take adequate measures to support and encourage it.”³⁴ This is exemplified by Article 14 of the European Union’s Copyright in the Digital Single Market Directive 2019 (hereinafter CDSM Directive or Directive 2019/790), which explicitly stated that non-original reproductions of artistic works in the Public Domain must stay in the Public Domain.³⁵ Therefore, digitisation of visual artworks does not warrant copyright protection.³⁶

At the EU level, legislative competence on cultural heritage matters is largely left to the Member States. Member States can therefore depart from the wording of EU Directives. However, the way in which a Member State transposes a provision must fully enable the achievement of the specific objectives of that provision. This is relevant to mention as the transposition of Article 14 of the European Union Copyright in the Digital Single Market Directive will be discussed in much greater depth in the next chapter, using Italy as a powerful example.

Chapter 2: The case of digital reproductions of public domain cultural heritage: A comparative analysis between the UK, EU, and Italy

This chapter explores the impact of digitisation on cultural heritage management in the UK, the EU, and Italy, focusing on the evolving copyright laws, and related laws and mechanisms.

2.1. United Kingdom

The UK’s renowned museums, archives, galleries, libraries (GLAMs), and other heritage institutions are significant assets, crucial to the country’s multi-billion pound heritage tourism sector.³⁷ GLAMs greatly enhance the UK’s global reputation and influence – in 2019 approximately half of all visitors to the UK stated cultural attractions as their primary reason for visiting.³⁸ Digitisation of cultural heritage further enables engagement with cultural objects, and can also uncover hidden or inaccessible materials, and foster new research and insights.³⁹

In the past, publishing a photograph of a painting, for example from a museum, required sending it off for a transparency (a printed reproduction), and museums charged a fee to cover the staff

³⁴ *ibid*, n33, p.170.

³⁵ Directive (EU) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market and amending Directives 96/9/EC and 2001/29/EC, Article 14.

³⁶ Deborah De Angelis and Brigitte Vézina, ‘The Vitruvian Man: A Puzzling Case for the Public Domain’ (Communia 2023) <<https://communia-association.org/2023/03/01/the-vitruvian-man-a-puzzling-case-for-the-public-domain/>> accessed 26 June 2024.

³⁷ UK Government, ‘Culture is Digital: June 2019 progress report’ (Department for Digital, Culture, Media & Sport 2019), section 5.5.

³⁸ *ibid*.

³⁹ *ibid*.

time involved in managing an image library.⁴⁰ With the advent of the Internet, most museums continued to charge fees even though authors and publishers could now easily download images from the museum's online collection.⁴¹ To maintain these fees and restrict image downloads, museums relied on copyright law.⁴²

A recent judicial proceeding has changed the ability of GLAMs to claim copyright protection on their digital reproductions of cultural heritage by labelling them as original works under the originality threshold of 'skill, labour, or effort'.⁴³ Now, in the UK, copyright can only be gained if a work is of the 'author's own intellectual creation', which is the EU originality threshold (which is a harder threshold to meet).⁴⁴ This ruling has high potential to have a significant impact in the cultural heritage sector, as it bars copyright claims from being made over faithful reproductions of public domain materials (ie materials that are no longer or never were protected by copyright).⁴⁵ Consequently, many institutions do and will use contractual arrangements to share faithful reproductions of public domain material, for example requiring the payment of a fee.⁴⁶ Contract law may apply when the terms of use of a website (belonging to a GLAM) either prohibit or allow certain activities to do with copyright, such as prohibiting the download of high-resolution images.⁴⁷ This practice is particularly prevalent in the UK, as "Many GLAMs use website policies to reinforce claims to intellectual property (IP) and prohibit activity beyond what copyright exceptions would permit a user to do.", as noted by Andrea Wallace in her study for the Towards a National Collection programme⁴⁸ despite many of these policy terms being unenforceable (strictly speaking) as the terms override acts permitted by copyright law.⁴⁹ GLAMs do this so that they can commercialise high-resolution digitised reproductions of works in their collections.⁵⁰

⁴⁰ Bendor Grosvenor, 'Images fees and UK copyright law – a breakthrough' (Art History News, January 2024) <https://www.arthistorynews.com/articles/7707-Images_fees_and_UK_copyright_law_a_breakthroug> accessed 12 July 2024.

⁴¹ *ibid*

⁴² *ibid*

⁴³ *University of London Press v. University Tutorial Press* [1916] 2 Ch 601, at 609–610, per Peterson J.

⁴⁴ *THJ Systems Limited & Anor v Daniel Sheridan & Anor* [2023] EWCA Civ 1354, [15]; *Infopaq International v. Danske Dagblades Forening* [2009] ECDR 16 (Case C-5/08).

⁴⁵ Brigitte Vézina, Connor Benedict, Jocelyn Miyara, 'UK Court Clears Path for Open Culture to Flourish' (Creative Commons, January 2024) <<https://creativecommons.org/2024/01/18/uk-court-clears-path-for-open-culture-to-flourish/>> accessed 11 July 2024.

⁴⁶ *Ibid*.

⁴⁷ Andrea Wallace (2022), n3, p.19, p.72–73.

⁴⁸ *Ibid*, p.19.

⁴⁹ *Ibid*. Look to section 4.2.7. 'Unenforceable terms' for examples of these policy terms, p.69–70.

⁵⁰ *Ibid*, p.72–73.

Interestingly, a significant reform was introduced in 2014 by the UK legislature. This revision to UK copyright law introduced contract override provisions.⁵¹ These provisions invalidate certain contractual attempts to prohibit actions that would not otherwise constitute copyright infringement. However, these provisions only apply to certain exceptions in the CDPA 1988 and do not, in addition, protect the public domain from being inhibited by contractual measures. Therefore the 2014 contract override provisions do not prevent GLAMs from imposing fees and other restrictions on public domain works through contractual measures.

The current situation poses risks to the public domain. The clearest and most current government statement from the UK Intellectual Property Office (IPO) came in 2015 with the publication of the 'Copyright Notice: Digital Images, Photographs, and the Internet'.⁵² This document addresses the issue directly, referencing EU standards and CJEU opinions and their impact on UK law: "According to established case law, the courts have said that copyright can only subsist in subject matter that is original in the sense it is the author's own 'intellectual creation'. Given this criterion, it seems unlikely that what is merely a retouched, digitised image of an older work can be considered as 'original'".⁵³ Despite its significance, the Copyright Notice has had minimal impact on digitisation practices in the UK, perhaps due to its non-binding nature.⁵⁴ There is a pressing need for change to ensure digitised reproductions of public domain works are accessible without restriction.

2.2. EU: Article 14 of the CDSM Directive

Article 14 of the Copyright in the Digital Single Market (CDSM) Directive ensures that "any material resulting from an act of reproduction of a public domain work cannot be subject to copyright or related rights protection unless it is original in the sense that it is the author's own intellectual creation."⁵⁵ Every EU Member State is obliged to implement Article 14 and therefore amend their national legislation in accordance. Given Italy's transposition of Article 14, its scope is arguably too minimalistic in nature, as a robust mechanism should extend beyond copyright law and encompass other legal areas, such as cultural heritage laws. This will be discussed in the next section.

⁵¹ Copyright, Designs, and Patents Act 1988, ss. 28B, 29, 29A, 30, 30A, 31F, 32, 41, 42, 42A, 75, as amended by the various 2014 Copyright Regulations; See UK Government, 'Changes to copyright law' <<https://www.gov.uk/government/news/changes-to-copyright-law>>.

⁵² UK Intellectual Property Office, 'Copyright notice: digital images, photographs and the internet' (2015) <<https://www.gov.uk/government/publications/copyright-notice-digital-images-photographs-and-the-internet/copyright-notice-digital-images-photographs-and-the-internet>> accessed 11 July 2024.

⁵³ *ibid*

⁵⁴ Andrea Wallace (2022), n3, p.23.

⁵⁵ Article 14, Directive 2019/790.

2.2.1. Italy

The implementation of Article 14 of the CDSM Directive in Italy has raised questions, and more importantly, concerns regarding the protection of the Public Domain. Italy transposed Article 14 of the CDSM Directive into domestic law by passing Article 32-*quarter* of the Italian Copyright Law n.633/1941.⁵⁶ Article 32-*quarter* includes a sentence which reads as follows: “The provisions of the reproduction of cultural heritage contained in Legislative Decree No. 42 of 22 January 2004 [The Italian Code of Cultural Heritage and Landscape] remain unaffected.”⁵⁷ The issue here is that the provisions in Italian Law that are cited to remain unaffected requires the payment of a concession fee for the reproduction of digital images of state-owned, public domain cultural heritage if the reproduction is for-profit,⁵⁸ and the requirement of authorisation from the state or institution which holds the cultural heritage for any intended reproduction.⁵⁹ This is clearly contrary to Article 14 of the CDSM Directive, which targets the practice of museums in claiming exclusive rights over materials resulting from digitisations of public domain works in their collections.

Adding greater controversy, the Italian courts firmly continually reaffirm Article 32-*quarter* in court proceedings. On October 24, 2022, the Court of First Instance in Venice ruled on a lawsuit filed by the Gallerie dell’Accademia di Venezia, a public museum under the Italian Ministry of Culture, against Ravensburger AG and Ravensburger Verlag GmbH (German toy companies), along with their Italian branch which was represented by Ravensburger S.R.L.⁶⁰ The court ordered the defendants to pay the Gallerie dell’Accademia di Venezia a fine of €1,500 for each day of delay in executing a preventative order, under the provisions set out in Article 108 of the CCHL.⁶¹ This case exemplifies the restrictive nature of Italian cultural heritage laws regarding the unauthorised use of digital reproductions of public domain works, such as Leonardo da Vinci’s ‘Vitruvian Man’. This is only a recent example of a number of cases highlighting the strict position that the Italian Government takes regarding Italy’s cultural heritage works.⁶²

The Italian Cultural Heritage Code’s “authorisation+fee” has been criticised as dealing a “severe blow” to Italy’s Public Domain, which in turn has an international impact on the enjoyment of the

⁵⁶ Article 32-quarter of the Italian Copyright Law n.633/1941, Legislative Decree no.177.

⁵⁷ *ibid.*

⁵⁸ Article 108 (‘Concession Fees, Payment for Reproduction, Security Deposits’) of the Legislative Decree No. 42 of 22 January 2004 [The Italian Code of Cultural Heritage and Landscape], [“ItCCHL”].

⁵⁹ *ibid.*, Article 107 (‘Instrumental and Temporary Use and Reproduction of Cultural Property’) of the ItCCHL.

⁶⁰ Gallerie dell’Accademia di Venezia v. Ravensburger, Tribunale di Venezia (sitting en banc), decided on October 24, 2022, and published on November 23, 2022.

⁶¹ ItCCHL, Article 108, n58.

⁶² Ministry of Culture v. Studi d’Arte Cave di Michelangelo; Galleria dell’Accademia Firenze v GQ; Uffizi v. Gaultier.

Public Domain in Italy.⁶³ Ultimately, this legal stance disregards the right to access cultural heritage.

2.3. Concluding Remarks

Despite the different legal frameworks and historical contexts, both countries encounter significant challenges in ensuring unrestricted access to digital reproductions of public domain cultural heritage.

The approach to the public domain is different in each jurisdiction. The UK faces limitations through the use of technological protection measures and through enforcing contractual arrangements. While digital reproductions of public domain works are increasingly available, the overridability of copyright in the UK is continuing to inhibit free use and dissemination. In contrast, the Italian legislator's problematic translation of Article 14 has allowed for its cultural heritage laws to override an otherwise sound legal mechanism to protect the public domain and a balanced copyright system. Cultural heritage laws impose substantial financial and administrative barriers on reproduction and dissemination of cultural heritage, and therefore public domain works. This approach restricts access and burdens individuals and entities seeking to use these works for educational, research, or creative purposes.

Ensuring unrestricted access to digital reproductions of public domain works in both countries is a substantial challenge. This comparative discussion underscores the need for tailored legal reforms to ensure the non-overridability of copyright law. The next chapter will delve into an analysis of these laws from a fundamental rights perspective.

Chapter 3: The overridability of copyright law analysed from a fundamental rights perspective

Although the legislators of the copyright system are often criticised as erring too far on the side of caution when seeking to fulfil their objectives by overly protecting the authors' interests,⁶⁴ this is not the case regarding digital reproductions of cultural heritage. The Copyright framework in the UK and EU, is largely proportionate, just and reasonable in seeking to protect and maintain the public domain. Thus, copyright law in and of itself is not the problem. It is its overridability by other laws and legal measures which are highly problematic regarding the right to access cultural heritage.

⁶³ Deborah De Angelis and Brigitte Vézina, n36.

⁶⁴ Dev Gangjee and Robert Burrell, 'Because You're Worth It: L'Oreal and the Prohibition on Free Riding' (2010) 73 Mod L Rev 282-295, 290.

The UK and Italy face different challenges in ensuring free access to digital reproductions of public domain cultural heritage online. While Italy imposes financial and administrative barriers, UK GLAMs employ contractual measures and technological protection measures (TPMs). This chapter delves into how contradictory laws and legal measures in the UK and Italy inhibit fundamental rights, specifically the right to access cultural heritage. It will explore how these fundamental rights serve as internal mechanisms within the copyright system as a force for change.

3.1. The overridability of copyright law: A fundamental rights analysis

It is crucial to emphasise that rights imply duties.⁶⁵ Legislators often enhance protection for copyright owners without considering corresponding duties to the public.⁶⁶ The grant of intellectual property rights should inherently impose a duty to ensure public access and participation.⁶⁷ This social contract underpins the functions of intellectual property, emphasising that rights must come with responsibilities.⁶⁸ GLAMs, by virtue of their civic mission, should ensure unrestricted access to digital reproductions of public domain works. This obligation aligns with their role in promoting cultural participation and societal development, and therefore fundamental rights.

In its traditional form, copyright is a tool to protect authors and to provide an incentive for them to create for the greater good.⁶⁹ Now, as Christophe Geiger explains, they are perceived instead as a tool to the advantage of “large, impersonal and unlovable corporations”.⁷⁰ Research has shown contract law, cultural heritage law, competition law and trade mark law all being used to protect GLAMs and their collections, in order for them to profit from works that are not protected by copyright.⁷¹ This prevents the free flow of information, access to knowledge, and the right to cultural participation – which clearly does not fall in line with the traditional incentive of the copyright system to benefit and develop society.⁷²

⁶⁵ Christophe Geiger, ‘Taking the Right to Culture Seriously: Time to Rethink Copyright Law’ in Christophe Geiger (eds), *Intellectual property and Access to Science and Culture: Convergence or Conflict* (CEIPI-ICTSD Publication Series, Issue Number 3, 2016), p.87-88.

⁶⁶ *ibid.*

⁶⁷ *ibid.*, n65.

⁶⁸ *ibid.*

⁶⁹ *ibid.*, n65, p.85-86.

⁷⁰ *ibid.*; J.C. Ginsburg, “How Copyright Got a Bad Name for Itself,” *Columbia Journal of Law and the Arts* 26(1) (2002), 61-73.

⁷¹ COMMUNIA, ‘The hollowing of the Public Domain’ (Salon 01/2024) <<https://communia-association.org/2024/06/20/video-recording-salon-the-hollowing-of-the-public-domain/>> accessed 28 June 2024.

⁷² Christophe Geiger (2016), n65, p.85-86.

3.1.1. The UK: Contractual Measures and Technological Protection Measures

In the UK, contractual measures and technological protection measures are commonly used to restrict access to public domain works. Technological advancements have enabled copyright owners to impose electronic contracts on users of their works, and the provisions to apply TPMs to these works to guarantee users conformity to the terms and conditions set out in the contracts.⁷³ Standard form contracts and TPMs embedded within digital works can significantly limit public access and usage. While the 2014 amendments to the Copyright, Designs and Patents Act 1988 introduced exceptions that cannot be overridden by contract,⁷⁴ these exceptions do not cover all areas of public interest. Most importantly, the public domain, which is not protected from contractual overriding.

It is important to note here that it is the prohibitions set out in the Information Society Directive,⁷⁵ prohibiting the circumvention of TPMs which have been applied to copyrighted works, that are implemented in section 296ZA to ZF of the Copyright, Designs, and Patents Act 1988.⁷⁶ However, this, of course, does not affect works in the public domain, as this prohibition only applies to copyrighted works that are party to copyright exceptions. In addition, the UK Government has accepted the principle that exceptions established under copyright law should not be eroded by contractual restrictions.⁷⁷ However, once again these exceptions do not include public domain works so this principle clearly does not extend far enough. Nor has the prohibition against contractual overriding been extended to other existing statutory exceptions that were not addressed directly by the 2014 amendments.⁷⁸

Much of the literature on TPMs and contract in the UK focuses on their impact on freedom of expression.⁷⁹ However, these same arguments can be applied to the right to cultural participation. Importantly, this literature largely paints the effect of TPMs and contract on freedom of expression in a mostly negative light,⁸⁰ which it is argued would be the same for the

⁷³ Yin Harn Lee (2015), n24, p.177.

⁷⁴ CDPA 1988, ss21, 28B, 29, 29A, 30, 30A, 31F, 32, 41, 42, 42A.

⁷⁵ Directive 2001/29/EC of the European Parliament and of the Council of 22 May 2001 on the harmonisation of certain aspects of copyright and related rights in the information society ("Information Society Directive").

⁷⁶ CDPA 1988.

⁷⁷ HM Government, 'Modernising Copyright: A modern, robust and flexible framework. Government response to consultation on copyright exceptions and clarifying copyright law' (2012), p.19; Yin Harn Lee (2015), n24, p.178-179.

⁷⁸ HM Government (2012), n77, p.19; Yin Harn Lee (2015), n24, p.178-179.

⁷⁹ Yin Harn Lee (2015), n24, p.181; See also Christophe Geiger, Elena Izyumenko, 'Freedom of Expression as an External Limitation to Copyright Law in the EU: The Advocate General of the CJEU Shows the Way' 41(3) (2018) European Intellectual Property Review, Centre for International Intellectual Property Studies Research Paper No.2018-12.

⁸⁰ Yin Harn Lee (2015), n24, p.181-183.

right to cultural participation. Focusing on contractual measures first, the principle issue is that “the ability to contract directly with users will enable copyright owners to restrict acts that they would not be entitled to restrict through copyright.”⁸¹ Such acts include those that fall outwith the scope of copyright’s exclusive economic rights, acts that fall within one of copyright law’s permitted exceptions, and acts relating to works that are not protected by copyright.⁸²

The same arguments can also be made over the use of TPMs, since they can prevent users from accessing and using works in ways that copyright law would otherwise allow them to do. There are several acts that TPMs prevent users from doing, such as reproducing and accessing works for purposes permitted by copyright exceptions, for example, for carrying out scientific research or use for educational and library purposes.⁸³ Crucially, TPMs can prevent reproductions of public domain material, which is central to this research.⁸⁴ From a fundamental rights perspective, it has also been argued that TPMs are not able to, by nature, accommodate “freedom of expression considerations.”⁸⁵ Neither are TPMs able to accommodate other fundamental rights considerations, like the right to cultural participation.

There are broader implications flowing from the overridability of copyright law, of course. To reaffirm the discussion on rights imposing duties, it is essential to prohibit rights holders from obstructing access to and dissemination of cultural heritage. This would ensure that there is access to “orphan or out-of-print works, forbidding the use of contracts or Technical Protection Measures that are blocking access through exceptions and limitations...”⁸⁶ As scholar Akester notes, the challenge with these contractual and technological overrides is that they provide copyright owners with additional technological and legal means to safeguard their interests in the digital realm, without corresponding measures to protect the public’s access to information and creative works.⁸⁷ It is argued in this research that a counterbalancing legal provision preventing the overridability of copyright law would be greatly effective. Such a provision will

⁸¹ Yin Harn Lee (2015), n24, p.181; Patricia Akester, ‘The New Challenges of Striking the Right Balance Between Copyright Protection and Access to Knowledge, Information and Culture’ (2010) 32(8) European Intellectual Property Review 372, 375 – 376.

⁸² Yin Harn Lee (2015), n24, p.181-182.

⁸³ Such as, but not limited to, Sections 28B-30, Copyright, Designs, and Patents Act 1988.

⁸⁴ Yin Harn Lee (2015), n24, p.182, 187; Kristin Housler, Camila Adach, and Anna Khalfaoui (2018), n6, p.25-26; See Caterina Sganga (2015), n9, p.23, “The spotlight has turned towards the privatisation of public domain and the severe limitations imposed by the new regulatory framework to access to knowledge and participation in cultural life.”

⁸⁵ Yin Harn Lee (2015), n24, p.182-183; Patricia Akester and R Akester, ‘Digital Rights Management in the 21st Century’ (2006) 28(3) European Intellectual Property Review 159, 161 – 162.

⁸⁶ Christophe Geiger (2016), n65, p.87-89.

⁸⁷ Patricia Akester (2010), n81, 377-378; Yin Harn Lee (2015), n24, p.183.

strengthen the copyright system and prohibit copyright holders from overriding copyright law in these ways. Discussion on this proposal will continue in the next chapter.

3.1.2. Italy: Cultural Heritage Laws

Focusing on the Italian cultural heritage scenario, Italy's enforcement of fees and an authorisation requirement for cultural heritage works, particularly those in the public domain, contradicts Article 14 of the CDSM Directive. Importantly, the recitals contained in the CDSM Directive do not contain anything about allowing the exclusion of cultural heritage by states or institutions under the scope of Article 14.⁸⁸ In fact, stated in the CDSM Directive is that "... the circulation of works in the public domain contributes to the access to and promotion of culture, and the access to cultural heritage."⁸⁹

In the translation of Article 14 CDSM Directive into Italian Law, the primary principle emphasised is the provision of access to digital reproductions of public domain works, thereby ensuring unrestricted access to the public domain and maintaining these works within it. In other words, keeping public domain works in the public domain. Additionally, Article 105 of the ItCCHL states that "The Ministry and the Regions shall... ensure the rights of use and enjoyment which the public has acquired over the things and properties...".⁹⁰ This right of use and public enjoyment directly aligns with Article 15 of the ICESCR,⁹¹ and thus is underpinned by fundamental rights. When considering the imposition of fees and requirement of authorisation the Italian state has imposed, however, this is clearly not the reality.

The Code of the Cultural and Landscape Heritage states in its notes relating to Article 10 (Enabling Statute for the Re-organisation and Codification of Cultural and Environmental Assets, Entertainment, Sports, Literary Property and Copyright) of law no.137,⁹² that the legislative decrees implemented must "harmonise the legislation relative to the production and dissemination of digital and multimedia content and software with the general principles followed by the European Union in matters pertaining to copyright and related rights."⁹³ However, the Italian implementation of Article 14 of the CDSM Directive has failed to harmonise its legislation concerning the production and dissemination of digital content with the broader principles upheld by the European Union in matters of copyright and related rights. In addition,

⁸⁸ Directive 2019/790, Recital [53]; COMMUNIA (Salon 01/2024), n71.

⁸⁹ Directive 2019/790, Recital [53].

⁹⁰ Article 105 ('Rights of Use and Public Enjoyment'), Code of the Cultural and Landscape Heritage, Legislative Decree no.42 of 2004.

⁹¹ ICESCR, n15.

⁹² Article 10 of law no.137 of 6 July 2002 containing "Enabling Statute for the Reform of the Organisation of the Government and of the Presidency of the Council of Ministers, and of Public Bodies".

⁹³ Legislative Decree no.42 of 22 January 2004, p.113-115.

a fundamental objective of Article 14 of the CDSM Directive is to ensure wider access to cultural heritage and to promote culture.⁹⁴ However, the Italian legislation presents significant obstacles to access cultural heritage and to use of those works that are in the public domain.⁹⁵ This directly undermines the right to access cultural heritage.

3.2. Concluding remarks

Legal mechanisms in Italy and the UK undermine the right to access cultural heritage. A balanced approach that reconciles the copyright system with these rights is essential. Ensuring unrestricted access to public domain works and digital reproductions is crucial for promoting cultural participation and societal development. Addressing these challenges requires aligning national laws with the CDSM Directive when applicable, and implementing non-overrideability provisions into national law, to promote unrestricted access to, use of, and enjoyment of cultural heritage in the digital age. The next chapter will present recommendations for establishing a more equitable legal framework to support access to cultural heritage.

Chapter 4: Proposals for Reform: Implementing change in the UK and EU

4.1. Introductory remarks

Following an examination of international standards (see Chapter 1), comparative analyses (See Chapter 2), and contemporary legal debates (see Chapter 3), this chapter will identify viable solutions to the tensions that arise between fundamental rights relating to access to heritage and the overrideability of copyright law, and its public domain. The sources that have been explored thus far have pointed to a strong need for legislative reform. Legislative reform at both UK and EU level will be proposed, which includes the implementation of a general non-overrideability provision into the CDPA 1988 and a similar provision in the form of a new Article in the CDSM Directive at EU level. These non-overrideability provisions aim to prevent other laws, contractual measures and technical protection measures (TPMs) from circumventing lawful user rights under the respective copyright laws, particularly the public domain.

In addition, recommendations regarding the role of the judiciary in applying fundamental rights in copyright cases will be highlighted to ensure the UK and EU have an efficient external fundamental rights limitation on the overrideability of copyright law, complementary to copyright systems internal fundamental rights mechanism (see Chapter 1).

⁹⁴ Directive 2019/790, Recitals [2], [5], [53].

⁹⁵ COMMUNIA (Salon 01/2024), n71; COMMUNIA, 'The right to use Public Domain heritage' (Policy Paper #20, June 2024).

4.2. Legislative Reform Proposals: Non-Overridability Provisions

It is evident that legislative writers should include fundamental rights considerations in the drafting of copyright legislation and related rights legislation. The proposals will expressly make the non-overridability of the public domain a part of copyright law.

It is argued that focusing solely on public domain material in these proposals is unlikely to produce a long-term, future proof solution. Consequently, the legislative proposals to follow are general non-overridability provisions to encompass copyright laws, exceptions and limitations, as it is clearly not only public domain materials that are party to contractual and technical, and legal restrictions.

4.2.1. The UK: The proposed new section to the CDPA 1988

In the UK, a copyright owner can use contractual measures or TPMs to limit access to public domain cultural heritage (and other cultural heritage too). However, a copyright owner cannot use contractual measures to prevent certain other uses of cultural heritage which are still protected by copyright, such as for text and data analysis, through non-overridability clauses.⁹⁶ So, currently in the UK, works in the public domain are less protected from restrictions on the freedom granted by the copyright law system once protection has been exhausted, compared to those still under copyright. This is problematic. Contractual measures and technological protection measures are being addressed with separate reforms as they appear in separate provisions in the CDPA 1988. First, reform relating to contractual restrictions will be proposed, followed by reform relating to TPMs.

i. Addressing contractual restrictions

Inserting a general non-overridability clause into the Copyright, Designs, and Patents Act 1988 requires, of course, careful consideration of its structure and existing sections. Implementing a new section specifically addressing the non-overridability of both copyright law and the public domain would be highly effective.

It is suggested that the new provision could be inserted into Part VII 'Miscellaneous and General' of the Copyright, Designs, and Patents Act 1988. Part VII of the CDPA 1988 includes several sections related to TPMs (which are connected to contractual measures), such as those addressing the circumvention of effective technological measures,⁹⁷ concerning the provision of services or products to circumvent TPMs,⁹⁸ and remedies where effective technological

⁹⁶ CDPA 1988, s29A(5): "To the extent that a term of a contract purports to prevent or restrict the making of a copy which, by virtue of this section, would not infringe copyright, that term is unenforceable."

⁹⁷ CDPA 1988, s296ZA.

⁹⁸ CDPA 1988, s296ZB.

measures prevent permitted acts.⁹⁹ Adding a comprehensive provision in Part VII, which deals with miscellaneous provisions, is argued to be a suitable location for this new section.

Proposed new section: new section 296ZG:

Contractual Non-Overridability of Copyright Exceptions and the Public Domain

General non-overridability Provision:

Any contractual term that purports to exclude or restrict the application of any exception set out in this Act, or that purports to restrict access to works in the public domain, shall be unenforceable.

This provision shall apply to all exceptions provided for under this Act, including those implemented prior to the 2014 Copyright Amendments which are not already protected by a non-overridability clause.

The rights and works within the public domain, including digital reproductions of such works, are expressly protected under this section, ensuring that no contractual terms shall impede access to public domain works, unless the material resulting from that act of reproduction is original.

This provision will ensure that the right to access cultural heritage is protected without interference from contractual terms (measures). Inserting a non-overridability provision that explicitly protects the public domain into the CDPA 1988 will strengthen the legal framework supporting public access to cultural heritage. Adding in this new section will ensure that the public domain (and other unprotected copyright exceptions) is not undermined by contractual measures. Copyright exceptions are included in this reform proposal as it makes the provision wider in scope and future-proof, aligning it with the non-overridability clauses already introduced for the 2014 implemented and amended copyright exceptions. This approach will enhance the robustness and future-proofing of copyright legislation, ensuring that cultural heritage remains accessible to all.

Section 1(a) of the proposed provision has been inspired by the non-overridability clauses seen elsewhere in the CDPA, such as in section 29A(5). It is argued that it is most practical to reinterpret and apply legal provisions that already exist within the CDPA and transpose them to address the issue.¹⁰⁰ Subsections (b) and (c) are to provide greater detail on the works that this provision seeks to address.

Following the judgement in *THJ v Sheridan*, an act of reproduction will be 'original' when it is the 'author's own intellectual creation'.¹⁰¹ This threshold for originality has not been explicitly stated

⁹⁹ CDPA 1988, s296ZE.

¹⁰⁰ Yin Harn Lee (2015), n24, p.191.

¹⁰¹ n44, [15].

in the proposed provision to allow flexible applicability in the future if the legal standard happens to change. In addition, the public domain will not be defined in this new proposed section to the CDPA 1988 as it has not been defined in this Act before, or in any other copyright related act for that matter. However, it is implied that, in the copyright framework, the public domain refers to works that are not protected by copyright (likely those works in which the copyright terms has expired) and can be (in theory) used freely by anyone.

i) Addressing technological restrictions

Regarding technological protection measures, implementation of a new subsection into section 296ZE of the CDPA 1988, titled 'Remedy where effective technological measures prevent permitted acts' is proposed. It is important to note that the prohibitions against circumventing TPMs stem from the Information Society Directive, and are found under sections 296ZA to 296ZF of the CDPA 1988.¹⁰² This proposed provision will directly address the use of TPMs to prevent access to public domain works, and digital reproductions thereof. The proposed provision could be implemented as follows:

Proposed subsection 12 to Section 296ZE of the CDPA 1988:

296ZE Remedy where effective technological measures prevent permitted acts

(12) No person shall apply any effective technological measures to public domain works or any materials resulting from an act of reproduction of that work, unless the material resulting from that act of reproduction is original.

Overall, the UK is in a good position to implement a general prohibition against contractual overriding, given the certain statutory exceptions that are already incapable of being overridden by contract, as aforementioned.¹⁰³ Practically, since express provisions against the overridability of copyright law by contractual measures have already been implemented into the law, it will be a feasible and justifiable amendment to UK law. There is scepticism about the reality of legislative reform, as Andrea Wallace says, a legal principle protecting the public domain is needed, but is "unlikely to happen".¹⁰⁴ Of course legislative change is difficult to instigate, but it is crucial if significant positive change is to be seen, which is why long-term, future-proof legislative reform remains the primary focus of this research.

¹⁰² Directive 2001/29/EC ("Information Society Directive"), Article 6; Yin Harn Lee (2015), n24, p.179.

¹⁰³ Yin Harn Lee (2015), n24, p.179, 185.

¹⁰⁴ Andrea Wallace (2022), n3, p.7.

4.2.2. *The EU: The proposed new provision to the CDSM Directive*

Any amendment at EU level will of course have a wide-reaching impact across all Member States, and not just Italy. Article 14 of the CDSM Directive is a highly fitting and positive secondary law provision in this era of digitisation in the cultural heritage sector. However, it is not comprehensive enough. Italy should not have been able to implement Article 14 in the way that it has been able to – subjecting it to be overridden by regulations relating to fees and requirements of authorisation under cultural heritage law. The EU legislature arguably did not make Article 14 strong enough and this is why reform is proposed at this level. Below, a general provision on the non-overridability of the provisions in the Directive is set out.

Proposed new Article 33 of the CDSM Directive

Article 33

Ensuring Compliance

No Member State law or regulation shall override or inhibit the application of any provision of this Directive, except where necessary to comply with other binding obligations under Union law.

Member States shall ensure that their national legislation is compliant with the provisions of this Directive.

It is argued that implementing a new Article that provides a general non-overridability provision in the CDSM Directive is likely to be more effective, protecting the public domain as well as other areas of copyright law covered in CDSM Directive. It will ensure that all current and future provisions of the Directive are protected from being overridden by conflicting Member State national laws. A standalone Article is a comprehensive way to cover all Articles of the Directive and not just Article 14, ensuring that the entire Directive retains its primacy over national laws. It provides the flexibility for future amendments to the Directive without needing to address non-overridability on an article-by-article basis. Finally, it reinforces the uniform application of the Directive across all Member States, championing harmonisation across the EU (as Directives are intended to do). Thus, providing a consistent and stable legal framework across the European Union.

Analysing this proposal considering the Italian legal scenario, it is restated that Legislative Decree no.177 implemented Article 14 of the CDSM Directive into Italy's domestic law. Within Italy's transposition in Article 32-*quarter* of Legislative Decree no.177 there stood out a highly controversial sentence stating that, "The provisions on the reproduction of cultural heritage

contained in Legislative Decree No.42 of 22 January 2004, remain unaffected”.¹⁰⁵ The provisions referred to are the regulations on fees and requirement of authorisation (See Chapter 2). Firstly, under the proposed amendment above, Article 32-*quarter* would be unenforceable. Secondly, Article 32-*quarter* would need to be amended in part to reflect the new EU non-overrideability provision.

It is important to note that the title of the Article, ‘Ensuring Compliance’, is a suggestion and is of course subject to change, as is the exact wording of the proposed Article.

4.3. Additional Recommendations: Other ways to ensure access to heritage

A “multi-level approach to state obligations” involving both legislators and the courts regarding the right to culture and copyright is “still missing”.¹⁰⁶ In saying this, Caterina Sganga is not wrong. Certain cultural rights, such as those referred to in the right to access cultural heritage, should be involved in judicial discussion in copyright cases, as has been seen with freedom of expression (see section 4.1.1).¹⁰⁷ Therefore, an additional recommendation is directed towards the judiciary. In court (such as the CJEU and UK Supreme Court), fundamental rights should be used as an external limitation in decisions relating to cultural heritage and copyright, such as use of public domain works, when copyright issues, related rights issues, or other legal issues occur. This can be done by looking at the issue from a fundamental rights perspective and whether the scenario at hand impedes on the fundamental right to access cultural heritage, for example. This type of approach has already been established at European Union level by Advocate General Szpunar of the CJEU in the *Afghanistan Papers* Case with regard to the fundamental right to freedom of expression.¹⁰⁸ Also, ensuring the CJEU is clear on this matter allows for a greater degree of uniformity and harmonisation in national courts.¹⁰⁹

The proposed amendments above will bolster the UK and EU’s copyright systems’ fundamental rights internal mechanisms by ensuring that copyright law principles cannot be overridden by other laws. The courts are then able to act as an external limitation to any such cases that do appear as a result of copyright holders that have not been deterred by the copyright law principles in place, ensuring access to heritage. This will place users on an even stronger footing when faced with situations where, for example, online contracts restrict uses that are otherwise

¹⁰⁵ Article 32-*quarter*, n56.

¹⁰⁶ Caterina Sganga (2015), n9, p.23.

¹⁰⁷ Christophe Geiger, Elena Izyumenko (2018), n79, p.8-13.

¹⁰⁸ Opinion of Advocate General Szpunar in Case C-469/17, [40]; Christophe Geiger, Elena Izyumenko (2018), n79, p.8-13.

¹⁰⁹ IPKat, ‘Book review: Copyright and Fundamental Rights in the Digital Age’ (2021) <<https://ipkitten.blogspot.com/2021/01/book-review-copyright-and-fundamental.html>> accessed 20 July 2024.

permitted by works being in the public domain, or when technical measures inhibit access to public domain works through for example, low-resolution images.¹¹⁰ This same argument also applies for uses that are permitted by statutory limitations and exceptions.¹¹¹

Increased funding for GLAMs at the EU, national, and UK levels, particularly for state-funded institutions, is highly important.¹¹² Adequate funding is essential for GLAMs to digitise their cultural heritage archives and collections, thereby fulfilling their civic duty to provide access to cultural heritage. GLAMs are notoriously underfunded, particularly in the UK, so it is acknowledged in this research that increased funding is essential in parallel with the above legislative proposals (if implemented). For a more practical focus on recommendations relating to the public domain and copyright in the UK, Andrea Wallace's 'Towards a National Collection' report, sets out an efficient set of practical recommendations for the UK, such as "access to funding and community support",¹¹³ and "support with communication and understanding rights".¹¹⁴ GLAMs in the UK in particular should also be strongly encouraged to incorporate the *THJ v Sheridan* judgement on 'originality',¹¹⁵ and/or UK IPO's 2015 Copyright Notice,¹¹⁶ expressly into their copyright policies.

4.4. Concluding remarks

In conclusion, the proposed reforms at both the UK and EU levels aim to safeguard fundamental rights by ensuring that access to cultural heritage and public domain works is not undermined by other legal, contractual or technological restrictions. The insertion of general non-overridability provisions into the CDPA 1988 and the CDSM Directive is a crucial step towards achieving this goal. The wording of these proposed provisions is likely to evolve over time, but the essential aim of this research is to ultimately address the identified problem and provide robust solutions that can be built upon. The proposed reforms (see 4.2) serve as an ideal starting point for legislative reforms that will future-proof our legal frameworks against the challenges posed by digital advancements and evolving technologies. It is hoped that these reforms take place within the not-too-distant future.

¹¹⁰ Christophe Geiger (2016), n65, p.89.

¹¹¹ Ibid.

¹¹² Kristin Housler, Camila Adach, and Anna Khalfaoui (2018), n6, p.21; Andrea Wallace (2022), n3, p.104.

¹¹³ Andrea Wallace (2022), n3, p.104, and see p.102-106.

¹¹⁴ Ibid, p.104.

¹¹⁵ n44, [15].

¹¹⁶ n3, p.102.

Conclusion

This study has undertaken a comparative analysis of Italy and the United Kingdom's approaches to access to cultural heritage, with a particular emphasis on the digital reproductions of public domain cultural heritage, viewed through the lens of fundamental rights, specifically Article 27 of the UDHR and Article 15 of the ICESCR. As explored in the initial part of the research, International, EU, and UK fundamental rights are clearly established (See Chapter 1). In particular, the UDHR and the ICESCR "strongly and consistently" oblige national jurisdictions to improve efforts towards access to cultural heritage and cultural participation, to improve cultural development worldwide.¹¹⁷ At EU level the Charter of Fundamental Rights underscores this commitment, as does other secondary legislation, for example the CDSM Directive.¹¹⁸ In the UK, the recent *THJ v Sheridan* judgement on "originality",¹¹⁹ combined with the UK IPO's 2015 stance,¹²⁰ shows a great commitment to creating a flourishing cultural heritage sector where access to heritage is championed.

As Giulia Dore and Giulia Priora powerfully wrote, "The vital human and fundamental rights dimension of the dilemma between holding back and making available public domain cultural heritage...makes the need for a balanced national regulatory and judicial interpretive approach even more critical."¹²¹ Ultimately, regulatory guidance is not clear enough in national legislation regarding the relationship between the cultural heritage and copyright legal frameworks (Italian and EU scenario),¹²² and, conversely, contract, TPM and copyright legal frameworks (UK scenario). The proposed amendments at EU and UK level seek to rectify this by addressing the conflicts between copyright and other competing areas of law through legislative reform.

It has been argued throughout that certain fundamental rights (those pertaining to cultural heritage) are an internal mechanism within the copyright system given its objectives and goals. Despite this, copyright is being overridden by other types of law by copyright holders, such as GLAMs, to restrict access to cultural heritage for economic purposes. Within this research, the issue of digital reproductions of public domain cultural heritage was focused on to portray the current socio-legal scenario in the UK and Italy. Given that fundamental rights are intrinsic to the functioning of the copyright system, a prohibition on the overriding of copyright law is vital.

¹¹⁷ Dore and Priora (2024), n8, p.44

¹¹⁸ Directive 2019/790, Article 14.

¹¹⁹ n44, [15].

¹²⁰ UK Intellectual Property Office, n52.

¹²¹ Dore and Priora (2024), n8, p.44.

¹²² *ibid.*

The proposed reforms are pivotal in addressing the challenges discussed. By introducing non-overrideability provisions, the aim is to ensure that cultural heritage laws, contractual terms and technological protection measures cannot circumvent the lawful use of public domain works (or any other lawful use of copyrighted works for that matter). These reforms are not only a response to current issues but also a proactive step towards future-proofing our legal frameworks against restrictive legal measures that inhibit the positive impact the cultural heritage sector could have (and does have) on society in the rapidly evolving digital landscape.

At the UK level, the proposed new sections to the CDPA 1988 offer a comprehensive mechanism to protect public domain works, and copyright exceptions more generally from being undermined by contractual and technological restrictions. Conversely, there is “substantial tension...between copyright and cultural heritage legal frameworks...” in Italy,¹²³ leading to a similar amendment proposed at EU level to the CDSM Directive which aims to harmonise member states’ laws, ensuring consistent and robust protection for cultural heritage across Europe.

Moreover, the additional recommendation for the judiciary to use fundamental rights as an external limitation in copyright cases further strengthens the protection of cultural heritage. This approach complements the internal mechanisms within copyright law, providing a balanced and holistic safeguard of fundamental rights. In addition, the importance of adequate funding for GLAMs is also highlighted, emphasising their crucial role in digitising and providing access to cultural heritage. Enhanced support and guidance for these institutions is essential to fulfil their civic duty and ensure that cultural heritage is accessible to all.

In conclusion, the proposed solutions are founded on legal amendments at EU and UK levels that directly address the overrideability of copyright law (and the public domain). These proposals are a starting point to be built upon following future research. They are also not short-term, quick fixes. They are long-term, future-proof legislative reforms that will likely take time to solidify and implement. It is argued, however, that investing time and resources in significant reform is worthwhile for the benefit of the cultural heritage sector and society as a whole. Most importantly, this research hopes to have underpinned the need to uphold the fundamental right to access cultural heritage for all.

¹²³ *ibid*, n8.

Bibliography

Cases

THJ Systems Limited & Anor v Daniel Sheridan & Anor [2023] EWCA Civ 1354.

University of London Press v. University Tutorial Press [1916] 2 Ch 601

European Cases

Infopaq International v. Danske Dagblades Forening [2009] ECDR 16 (Case C-5/08).

Funke Medien NRW GmbH v. Federal Republic of Germany, Case C-469/17, delivered on 25 October 2018, EU:C:2018:87

Ashby Donald and Others v. France, no. 36769/08, 10 January 2013, CE:ECHR:2013:0110JUD003676908

ECtHR, *Neij and Sunde Kolmisoppi v. Sweden* [“The Pirate Bay”] (dec.), no. 40397/12, 19 February 2013, CE:ECHR:2013:0219DEC004039712

Italian cases

Gallerie dell’Accademia di Venezia v. Ravensburger, Tribunale di Venezia (sitting en banc), decided on October 24, 2022, and published on November 23, 2022.

Ministry of Culture v. Studi d’Arte Cave di Michelangelo

Galleria dell-Academia Firenze v. GQ

Uffizi v. Gaultier

UK Legislation

Copyright, Designs, and Patents Act 1988

Human Rights Act 1998

Italian Legislation

Legislative Decree No. 42 of 22 January 2004 [The Italian Code of Cultural Heritage and Landscape].

Italian Copyright Law n.633/1941, Legislative Decree no.177.

Italian Copyright Law no.137 of 6 July 2002, published in *Official Gazette* no.158 of 8 July 2002, as modified by art.1-*bis* of law decree no.24 of 18 February 2003, published in *Official Gazette* no.40 of 18 February 2003 and converted, with modification, into law no.82 of 17 April 2003, published in *Official Gazette* no.92 of 19 April 2003.

European Legislation

Council of Europe, *European Convention for the Protection of Human Rights and Fundamental Freedoms, as amended by Protocols Nos. 11 and 14*, ETS 5, 4 November 1950

Directive (EU) 2019/790 of the European Parliament and of the Council of 17 April 2019 on copyright and related rights in the Digital Single Market and amending Directives 96/9/EC and 2001/29/EC.

Directive 2001/29/EC of the European Parliament and of the Council of 22 May 2001 on the harmonisation of certain aspects of copyright and related rights in the information society.

European Union, Charter of Fundamental Rights of the European Union, 2012/C 326/02, 26 October 2012.

United Nations Documents

Committee on Economic, Social and Cultural Rights, General Comment 21, Right to Everyone to Take Part in Cultural Life (Article 15, paragraph 1(a), of the International Covenant on Economic, Social and Cultural Rights) UN Doc. E/C.12/GC/21, 20 November 2009.

Human Rights Council (UN), 'Report of the independent expert in the field of cultural rights, Faria Shaheed' (A/HRC/17/38) (2011).

UN General Assembly, *Universal Declaration of Human Rights*, 10 December 1948.

UN General Assembly, *International Covenant on Economic, Social, and Cultural Rights, United Nations*, Treaty Series, vol. 993, 1996, Article 15.

Government Reports

UK Government, 'Culture is Digital: June 2019 progress report' (Department for Digital, Culture, Media & Sport 2019).

HM Government, 'Modernising Copyright: A modern, robust and flexible framework. Government response to consultation on copyright exceptions and clarifying copyright law' (2012).

UK Intellectual Property Office, 'Copyright notice: digital images, photographs and the internet' (2021) <<https://www.gov.uk/government/publications/copyright-notice-digital-images-photographs-and-the-internet/copyright-notice-digital-images-photographs-and-the-internet>> accessed 11 July 2024.

UK Parliament, 'Museums and Galleries: Copyright' (Department for Digital, Culture, Media and Sport 2017) <<https://questions-statements.parliament.uk/written-questions/detail/2017-11-06/HL2907>> accessed 11 July 2024.

Commissioned Reports

Andrea Wallace, 'A Culture of Copyright: A scoping study on open access to digital cultural heritage collections in the UK' (Towards A National Collection, 2022).

British Institute of International and Comparative Law, 'The Human Right to Access and Enjoy Cultural heritage in the United Kingdom' (2018).

COMMUNIA, 'The right to use Public Domain heritage' (Policy Paper #20, June 2024).

Books

Creative Commons, Creative Commons Certificate for Educators, Academic Librarians, and Open Culture <<https://certificates.creativecommons.org/cccertedu/>> accessed 1 August 2024.

Locke J., 'Second Treatise' (1689).

Contributions to Edited Books

Sganga C., 'Right to Culture and Copyright' in C. Geiger (ed.), "Research Handbook on Human Rights and Intellectual Property" (Edward Elgar 2015), pp.560-576.

Geiger C., and Izyumenko E. "Intellectual Property before the European Court of Human Rights", in: C. Geiger, C. Nard and X. Seuba (eds.), *Intellectual Property and the Judiciary*

Geiger C., 'Taking the Right to Culture Seriously: Time to Rethink Copyright Law' in Christophe Geiger (eds), *Intellectual property and Access to Science and Culture: Convergence or Conflict* (CEIPI-ICTSD Publication Series, Issue Number 3, 2016),

Psychogiopoulou E., 'The European Union and Cultural Rights', in Ana Vrdoljak (ed.), *The Cultural Dimension of Human Rights*, Collected Courses of the Academy of European Law (Oxford, 2013).

Pineschi L., 'Cultural Heritage, Sustainable Development and Human Rights: The Need for an Integrated Approach' in Laura Pineschi (Ed.) *Cultural Heritage, Sustainable Development and Human Rights: Towards an Integrated Approach* (Routledge, 2023)

Working Paper

Yin Harn Lee, with preface and summary by Emily Laidlaw and Daithi Mac Sithigh 'Copyright and Freedom of Expression: A Literature Review' (CREATe Working Paper 2015/04 (May 2015)).

Journal Articles

Dev Gangjee and Robert Burrell, 'Because You're Worth It: L'Oreal and the Prohibition on Free Riding' (2010) 73 Mod L Rev 282-295.

Christophe Geiger, 'Copyright's Fundamental Rights Dimension at EU Level' (2009) Research Handbook on the Future of EU Copyright, 27-48.

Christophe Geiger, Elena Izyumenko, 'Freedom of Expression as an External Limitation to Copyright Law in the EU: The Advocate General of the CJEU Shows the Way' 41(3)(2018) European Intellectual Property Review 131 (2019), Centre for International Intellectual Property Studies Research Paper No.2018-12.

J.C. Ginsburg, 'How Copyright Got a Bad Name for Itself' Columbia Journal of Law and the Arts 26(1)(2002).

Kristin Housler, Camila Adach, and Anna Khalfaoui, 'The Human Right to Access and Enjoy Cultural Heritage in the United Kingdom' British Institute of International and Comparative Law.

Patricia Akester, 'The New Challenges of Striking the Right Balance Between Copyright Protection and Access to Knowledge, Information and Culture' (2010) 32(8) European Intellectual Property Review 372.

Independent Expert Opinions

Giulia Dore and Giulia Priora, 'The EU imperative to a free public domain: The case of Italian Cultural Heritage' (Communia 2024) <https://communia-association.org/wp-content/uploads/2024/04/The-EU-imperative-to-a-free-public-domain_-The-case-of-Italian-cultural-heritage-1.pdf>

Blog posts

Bendor Grosvenor, 'Images fees and UK copyright law – a breakthrough' (Art History News, January 2024) <https://www.arthistorynews.com/articles/7707_Images_fees_and_UK_copyrig ht_law__a_breakthrough> accessed 12 July 2024.

Brigitte Vézina, Connor Benedict, Jocelyn Miyara, 'UK Court Clears Path for Open Culture to Flourish' (Creative Commons, January 2024) <<https://creativecommons.org/2024/01/18/uk-court-clears-path-for-open-culture-to-flourish/>> accessed 11 July 2024.

COMMUNIA, 'The hollowing of the Public Domain' (Salon 01/2024) <<https://communia-association.org/2024/06/20/video-recording-salon-the-hollowing-of-the-public-domain/>> accessed 28 June 2024.

CREATe, '21 for 2021: Digital heritage and the public domain' (2022) <<https://www.create.ac.uk/blog/2022/01/07/21-for-2021-digital-heritage-and-the-public-domain/>>

Deborah De Angelis and Brigitte Vézina, 'The Vitruvian Man: A Puzzling Case for the Public Domain' (COMMUNIA 2023) <<https://communia-association.org/2023/03/01/the-vitruvian-man-a-puzzling-case-for-the-public-domain/>>

Deborah De Angelis and Giuditta Giardini, 'Tales of public domain protection in Italy' (COMMUNIA 2023) <<https://communia-association.org/2023/07/10/tales-of-public-domain-protection-in-italy/>>

Websites

HathiTrust, 'What You Can Download from the Collection' <<https://hathitrust.atlassian.net/servicedesk/customer/portal/1/article/2387247137>> accessed 5 July 2024

IPKat, 'Book review: Copyright and Fundamental Rights in the Digital Age' (2021) <<https://ipkitten.blogspot.com/2021/01/book-review-copyright-and-fundamental.html>> accessed 20 July 2024.

Labour, 'Creating Growth: Labour's Plan for the Arts, Culture and Creative Industries' (2024), p.33 <<https://labour.org.uk/wp-content/uploads/2024/03/Labours-Arts-Culture-Creative-Industries-Sector-Plan.pdf>> accessed 1 August 2024.

Terms of Use, Leeds Museums & Galleries (All rights reserved) <<https://museumsandgalleries.leeds.gov.uk/terms-of->

[use/#:~:text=In%20general%20any%20reproduction%2C%20transmission,from%20Leeds%20Museums%20and%20Galleries](#)> accessed 12 July 2024

Tina Weidner, '35 MM Slide Medium' <<https://www.tate.org.uk/about-us/projects/dying-technologies-end-35-mm-slide-transparencies/35-mm-slide-medium>> accessed 12 July 2024



CREATE

Centre for Regulation of the Creative Economy

School of Law / University of Glasgow

10 The Square

Glasgow G12 8QQ

www.create.ac.uk

2024/11 DOI: 10.5281/zenodo.14196293

CC BY-SA 4.0

In collaboration with:

